

Missouri arrest-only expungement filing guide

Packet and filing location

Prepared for Jordan Lee Example. This is a synthetic example, not an actual person or case.

This packet concerns an arrest that never became a charge. File only in a court of competent jurisdiction in Jackson County, where the arrest occurred.

Included: CR360 petition; FI-05 confidential filing sheet; the attached continuation when shown; CR370 only because this synthetic fixture says the court expects a proposed judgment; GN10 only when the participant asked for a fee-waiver form; and these instructions.

The clerk assigns the new expungement case number and filing date. The judge or clerk assigns the division. Leave all court findings, hearing information, judgment date and judge signature blank. The participant personally reviews and signs CR360.

Verify records and participant fields before filing

Obtain the arrest report and a fingerprint-based Missouri State Highway Patrol record. Confirm the arrest date, arrest county, arresting agency, alleged offense, that no charge was ever filed, and that no charge or guilty finding occurred during the eighteen-month period.

Confirm the participant identity and contact data: full legal name, date of birth, sex selection, race and ethnicity selection, current address, driver-license number/state/expiration, phone, email and full Social Security number for confidential FI-05. FI-05 is confidential and must go through the clerk's confidential filing channel.

Confirm every agency defendant against the records. An expungement order does not affect an entity that is not named. Do not invent an agency or address. Extra records and agencies are carried on the continuation.

Review CR360 paragraphs 1 through 7 and the prior-expungement election. The official form prints sworn factual and legal statements. LegalEase has not chosen the public-safety or interests-of-justice conclusions. Sign only if every printed statement and attachment is true.

Fees, signatures and clerk handback

Ask the filing clerk for the current county-variable filing fee, accepted payment method, copy count, and whether the court expects CR370. The former \$250 surcharge was repealed and is not quoted here.

If requesting a waiver, review GN10's income, expenses, assets and debts; supply the Respondent's Address/Telephone caption field as the clerk directs for multiple defendants; then personally date and sign the penalty-of-perjury statement. The held SJRC (07-15) GN10 is one page and carries no page-two court order. No income answer, signature or court decision is inferred.

The participant does not serve the prosecutor. The clerk gives statutory notice. A prosecutor may object within thirty days after receiving service; the court may set a hearing. Obtain the actual hearing notice from the court rather than writing a date or claiming notice occurred.

After a signed judgment, obtain a filed copy and ask which named agencies received it. CR370 in this packet is an unsigned proposal and is never proof that relief was granted. Missouri relief closes records under section 610.120; it does not destroy them.

Stop and get legal or clerk help

Do not file this route if a charge was opened from the arrest, fewer than eighteen months have passed, or the participant was charged or found guilty of a misdemeanor or felony during that period.

Review the separate section 610.122 route first if the arrest involved false information or a qualifying chapter 303/moving-violation disposition, because that route may provide destruction rather than closure.

CR360 prints conviction-oriented sentences even on this arrest-only route. The attached section 610.140.7 continuation preserves the official form and supplies arrest-only facts. Before signing or filing, confirm with the clerk or counsel that CR360 plus this continuation is accepted and that case type X5 is correct. The repository's held legal record marks both as unresolved release questions.

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A second arrest during the eighteen-month period, and whether an arrest-only expungement counts against lifetime offense caps, remain questions for counsel. Stop rather than guessing.

These packet pages prepare forms; they do not decide eligibility, make sworn statements for the participant, or provide a court ruling.